IN THE SUPERIOR COURT OF JUDICATURE, IN THE HIGH COURT OF JUSTICE, COMMERCIAL DIVISION "B" (GENERAL JURISDICTION) HELD AT SUNYANI ON THURSDAY THE 22ND DAY OF MAY, 2025 BEFORE HER LADYSHIP JUSTICE JOYCE BOAHEN, HIGH COURT JUDGE

SUIT NO. C10/058/2024

IN THE MATTER OF AN APPLICATION FOR

COMMITAL FOR CONTEMPT

AND

IN THE MATTER OF THE REPUBLIC

VS.

KEVIN ANANE ADDO **RESPONDENT**

NANA SAARA ADJEI & 2 OTHERS **APPLICANTS**

JUDGMENT

1st and 2nd Applicants present

3rd Applicant absent

Respondent present

Florence Akua Danso appears for the Applicants

Alex Amponsah for the Respondent present

INTRODUCTION

The background to this ruling is that on 10th January, 2024, the Plaintiffs issued a writ to initiate chieftaincy proceedings before the Judicial Committee of the Dormaa Traditional Council (JCDTC) for the following reliefs;

a. A declaration that the purported nomination, election, and installation of the 12th Defendant (Kelvin Nana Addo) as the chief of Abesim and Kyidomhene of Dormaa Traditional Area by the other Respondents herein on the 29th and 31st December 2023 is/was against the customary practices and usage of the people of Abesim and Dormaa and therefore unlawful and must be declared as null and void and of no customary and legal effect.

b. A declaration that it is the prerogative and joint responsibility / function of the kingmakers of Abesim Traditional Area to nominate a suitable candidate for selection and installment as the chief of Abesim and Kyidomhene of Dormaa Traditional Area/Council and that any purported nomination by the paramount

chief of Dormaa Traditional **Council** and the Abakomahene (1st Defendant) is null and void.

c. An order of the honourable Judicial Committee to compel the Defendants, (the kingmakers) to ensure that the proper customary procedure for the nomination election and installation of the chief of Abesim and Kyidomhene of Dormaa Traditional Area is complied with.

d. An order of the honourable Judicial Committee restraining the 1st to 11th Defendants herein their agents, servants, supporters, assigns etc. from in anyway recognizing and or holding out the 12th Defendant as the chief of Abesim and Kyidomhene of Dormaa Traditional Area/Council.

e. An order of the honourable Judicial Committee restraining the 12th Defendant from in anyway styling himself or holding himself as the chief of Abesim and Kyidomhene of Dormaa Traditional Area.

On the same date, 10th January, 2024, the Applicants filed Motion on Notice for Interlocutory Injunction before the Judicial Committee of the Dormaa Traditional Council, praying the JCDTC for an order of interlocutory injunction to restrain the 1st to 11th Defendants / Respondents, their agents, servants, assigns or any person acting on

the consent and in concurrence with the 1st to 11th Respondents from in any way recognizing and or holding out the 12th Respondent (Kelvin Anane Addo) who has been so nominated, by the kingmakers unlawfully, from in any manner styling himself and performing the duties and functions as chief of Abesim and Kyidomhene of Dormaa Traditional Area and for such further order(s) as the honourable Judicial Committee may deem fit to make.

The Applicants on 24th June, 2024 further filed an application for attachment of the Respondent herein for committal for contempt of Court for demonstrating or exhibiting gross disrespect for law and order, and exhibiting conduct which tend to expose the administration of justice to public ridicule and contempt in the chieftaincy proceedings titled; Nana Saara Adjei & Others v. Nana Adusei Bonsu & Others pending at the Judicial Committee of the Dormaa Traditional Council, Dormaa Ahenkro and for any further order(s) as the Judicial Committee may deem fit to make. The gravamen of the Applicants' case is that while a suit they initiated against the Respondents and an application for interlocutory injunction filed on 10th January, 2024 to restrain the 12th Respondent from styling himself and performing the duties and functions as Chief of Abesim and Kyidomhene of Dormaa Traditional Area was pending, the Respondents in total disrespect to the Court processes organized the coronation of the 12th Respondent on 2nd June, 2024.

The Applicants noted that before the Respondent was enstooled, the writ had already been filed at the JCDTC on 7th September, 2023. That the Applicants complied with all the rules on contempt specifically Order 50 of the High Court (Civil Procedure) Rules, 2004 (C.I 47) before filing the application and that the application has not been brought out of malice. According to the Applicants, the 12th Respondent in total disregard to the proceedings before the JCDTC organized a grand coronation as the Chief of Abesim and Kyidomhene of Dormaa. That the Respondent's conduct is an affront to the integrity of the Judicial Committee as well as law and order. His acts have brought the efficacy of the Court system into disrepute, exposed the administration of justice to public ridicule, prejudiced and interfered with the chieftaincy proceedings pending before the JCDTC. That the Respondent's acts is highly reprehensible and highly contemptuous and he must be held responsible for his illegal acts.

WRITTEN SUBMISSION OF COUNSEL FOR THE APPLICANTS

In his written submission in support of the application, Counsel for the Applicants stated that before the 12th Respondent was enstooled as Chief of Abesim on 31st December, 2023 the writ of summons and interlocutory injunction filed on 7th September, 2023 were pending. The said injunction was to restrain the Respondents their agents, servants, etc. from submitting the name of the Respondent in the injunction

application to the kingmakers or styling himself as a nominee or candidate contesting for Chief of Abesim. According to Counsel, the Respondent defied Court processes and allowed himself to be illegally installed as Chief of Abesim. When a second injunction was filed on 10th January, 2024 the Respondent ignored it and organized his coronation on 2nd June, 2024. That since the coronation of the 12th Respondent was held when the injunction was pending, the 12th Respondent is guilty of contempt because being aware of the existence of the application for interlocutory injunction, he went ahead to perform the act that the injunction sought to restrain him from doing per the case of Republic v. Moffat & Others Ex Parte Allotey [1971] 2 Ghana Law Report (GLR) 391 - 403. Counsel further referred to the case of Aryeetey v. Agbofu II and Another [1994 – 1995] 1 GLR 250 and page 378 of Francisca Serwaa Boateng's book; "The Handbook on Civil Procedure and Practice in Ghana" which states that; *A respondent who performs the very act that is intended to be restrained in proceedings pending in court will be guilty of contempt*.

In response to the Respondent's claim that the Applicants did not properly invoke the jurisdiction of this honourable Court and that the present application is incompetent, Counsel argued that they rightly invoked the Court's jurisdiction under Order 50 of C.I 47. With reference to the case of the Republic vs. High Court, Kumasi; Ex parte Fosuhene [1989 – 90] 2 GLR 315, SC and page 565 of Justice Brobbey's Book on the "Law of Chieftaincy in Ghana", Counsel submitted that the Applicant complied with the rules

because the suit was initiated by an individual so a certificate of the Judicial Committee is not necessary. The Applicants' prayer is for the Respondent to be committed to prison for grossly disrespecting the orders of the Judicial Committee of the Dormaa Traditional Council. He should therefore be punished to serve as deterrence to like – minded individuals.

RESPONDENT'S OPPOSITION

The Respondent is known in private life as Kelvin Anane Addo and his stool name is Barima Kumi Achiaw III. In his affidavit in opposition the Respondent noted that the event of 2nd June, 2024 was an inaugural meeting with the kingmakers, chiefs, elders and subjects of Abesim stool as a newly installed Chief which is a legitimate customary proceeding and customary practice after the enstoolment of any Chief. Following his being validly enstooled as a Chief he could not be held for contempt for acts done in good faith during legitimate customary proceedings. He has not willfully violated any Court order or process. After he had undergone all the customary rites he was presented to the Dormaahene, his Overlord by all the kingmakers and he was enstooled on 31st December, 2023.

He swore the oath of office to the Chiefs and elders and the people of Abesim and swore the oath of allegiance to the Dormaa stool before the Dormaahene on 1st

January, 2024. The Respondent noted that upon the advice of his lawyer, the application is incompetent and wrong in law because it did not comply with the rules and that the Applicants have failed to prove his guilt beyond reasonable doubt. His case is that exhibit "F", the application for interlocutory injunction was not against him but against Nana Adusei Bonsu Abakomahene of Abesim restraining him from introducing him to Nana Ansu Twum who are both not parties to the present application.

SUBMISSION OF COUNSEL FOR RESPONDENT

Counsel noted that the application for interlocutory injunction filed on 10th January, 2024 sought to restrain the 1st to 11th Defendants Respondents their agents, servants, assigns or any person among others not to recognize the 12th Respondent in anyway or holding out the 12th Respondent as Chief of Abesim among others. The injunction also sought to restrain the 12th Respondent who had been unlawfully nominated from styling himself and performing the duties and functions as Chief of Abesim and Kyidomhene of Dormaa Traditional Area. Counsel argued that per the processes filed by the parties, the alleged contempt proceedings by the Respondent was committed against the JCDTC which fell within the ambit of contempt in chieftaincy proceedings. Counsel referred to the Chieftaincy (Proceedings and Functions) (Traditional Councils) Regulations, 1972 (L. I 798) Regulation 13 of L.I 798 sub regulations (4) and (5)

particularly sub regulation (5) which states that where it appears to the Judicial Committee that any person has committed contempt by which the committee was appointed it shall certify that fact to the High Court and after the High Court had made an enquiry into it, it would take steps to punish the person in question if it is satisfied that the person is guilty of contempt and acquit him if it thinks otherwise.

Therefore, the application should have been brought by certification of the Council but not by an individual. Counsel cited the case of Akenten II vs. Mensah and Others [1998 – 90] 2 GLR 239 – 253 in which case the Court held that it is the Judicial Committee whose order had been breached that is the Complainant and not the person in whose favour the order was made. It is therefore the Judicial Committee which should certify that its orders had been breached and to request the High Court to conduct enquiry and punish the Respondent if contempt is established. Counsel further cited the case of the Republic vs. Akenten II Ex Parte Yankyera [1993 – 94] 1 GLR 246 – 254 in which the Court held that a certification of the Judicial Committee is a sine qua non where the complaint was that there had been a contempt of a Judicial Committee of the Traditional Council. Counsel submitted that the Respondent was nominated, elected, installed and enstooled as Chief of Abesim between 29th and 31st December, 2023 while the chieftaincy proceedings and the injunction were filed on 10th January, 2024.

Counsel argued that the injunction sought to restrain the Respondent after he had been installed as Chief of Abesim eleven (11) days thereafter. That upon the installation of the

Respondent as Chief of Abesim, he remains the substantive Chief of Abesim until his installation is set aside as being invalid. Counsel cited Section 61 of the Chieftaincy Act, 2008 (Act 759) which is to the effect that a chief is not liable for contempt of Court in Court proceedings because of an act done or statement made in good faith in respect of or during legitimate customary proceedings or practice which are not in a wilful violation of a specific order of a Court. Counsel contends that the Respondent having established that he was a Chief when the chieftaincy petition and injunction were filed, the onus lies on the Applicant to prove contempt against the Respondent by showing that what happened on 2nd June, 2024 based on which the Respondent was cited for contempt amounts to contempt under Section 61 of the Chieftaincy Act or that the Respondent violated an order of a Court.

Counsel argued that the Applicant's claim in a supplementary affidavit in support that before the Respondent was installed as Chief of Abesim there was a writ and an injunction to a chieftaincy petition pending before the JCDTC does not support the motion for contempt filed on 24th June, 2024 and that the motion is in relation to a chieftaincy petition filed on 10th January, 2024. Counsel prayed the Court to disregard the Applicant's claim. Another argument of Counsel is that the Respondent has not disobeyed any Court order, neither has he treated any Court process with disrepute. He has also done nothing to spite and undermine the administration of justice by putting the Judicial Committee of the Dormaa Traditional Council to disrepute. The Applicant

has failed to prove a charge of contempt against the Respondent and therefore the application should be dismissed.

BY COURT;

From the affidavit evidence and written submissions filed by the parties and their Counsel the issues arising for determination in this application are as follows;

1. *Whether or not the Applicants properly invoked the jurisdiction of this Court regarding the application for contempt*

2. *Whether or not the respondent is guilty of contempt*

ISSUE (1)

Whether or not the Applicants properly invoked the jurisdiction of this Court regarding the application for contempt

It is clear from the processes filed by the parties that this contempt proceeding emanated from a writ issued by the Applicants against the Respondents before the Judicial Committee of the Dormaa Traditional Council (JCDTC) in a case entitled Nana Saara Adjei & 2 Others v. Nana Adusei Bonsu & 11 Others. It is further not disputed that

the writ and the Motion on Notice for Interlocutory Injunction pending before the JCDTC were both filed on 10th January, 2024. The Applicants stated that before the Respondent was enstooled the writ had already been filed at the JCDTC on 7th September, 2023. Counsel for Respondent challenged this assertion of the Applicants and noted that there was no process filed on that date as alleged by the Applicants and that the processes referable to the motion for committal for contempt are the writ and the motion for interlocutory injunction, both filed on 10th January, 2024 after the Respondent was installed as Chief of Abesim on 31st December, 2023. Counsel prayed the Court to disregard the said assertion by the Applicants.

Considering the fact that the writ and injunction were filed on 10th January, 2024 when the Respondent was installed on 31st December, 2023, this confirms that the Respondent was installed before the writ and the motion on notice for interlocutory injunction were filed before the JCDTC. This fact is established in the Applicants' own relief (a) as follows;

(a) A declaration that the purported nomination, election, and installation of the 12th Defendant (Kelvin Nana Addo) as the chief of Abesim and Kyidomhene of Dormaa Traditional Area by the other Respondents herein on the 29th and 31st December 2023 is/was against the customary practices and usage of the people of Abesim and Dormaa and therefore unlawful and must be declared as null and void and of no customary and legal effect.

Therefore, the Applicants cannot be heard to say that there was a writ pending before the JCDTC on 7th September, 2023 before the Respondent was installed as Chief of Abesim. This is not borne out of the processes filed before the Court by the parties. It is therefore clearly an afterthought that the Applicants seek to smuggle their claim that a writ was pending before the JCDTC before the Respondent was installed into the evidence to fill in the gap which clearly sins against Order 50 of C.I 47 as argued by Counsel for Respondent. The Court therefore agrees with Counsel for Respondent's argument to disregard the said claim of the Applicants. For the avoidance of doubt **Order 50 Rule 3 sub rule (3) of the High Court (Civil Procedure) Rules, 2004 (C.I 47)** provides that;

(3) Without prejudice to the powers of the Court under Order 16 rule 7 no grounds except the grounds set out in the affidavit in support of the motion shall be relied upon at the hearing of an application for an order of committal

Counsel argued that per the processes filed by the parties the alleged contempt proceedings by the Respondent was committed against the JCDTC which fell within the ambit of contempt in chieftaincy proceedings. Counsel referred to Regulation 13 of L.I 798 sub regulations (4) and (5) particularly sub regulation (5) which states that where it appears to the Judicial Committee that any person has committed contempt by which the committee was appointed, it shall certify that fact to the High Court and after the High Court had made an enquiry into it, it would take steps to punish the person in

question if it is satisfied that the person is guilty of contempt and acquit him if it thinks otherwise. Therefore, the application should have been brought by certification of the JCDTC but not by an individual. Counsel cited the case of **Akenten II v. Mensah and Others [1998 – 90] 2 GLR 239 - 253** in which the Court held that it is the Judicial Committee whose order had been breached that is the Complainant and not the person in whose favour the order was made. It is therefore the Judicial Committee which should certify that its orders had been breached and to request the High Court to conduct enquiry and punish the Respondent if contempt is established. Counsel further cited the case of the Republic v. Akenten II **Ex Parte Yankyera [1993 – 94] 1 GLR 246 - 254** in which the Court held that a certification of the Judicial committee is a sine qua non where the complaint was that there had been a contempt of a Judicial Committee of a Traditional Council.

In response to the Respondent's claim that the Applicants did not properly invoke the jurisdiction of this honourable Court and that the present application is incompetent, Counsel for the Applicants argued that they rightly invoked the Court's jurisdiction under Order 50 of C.I 47. With reference to the case of the Republic v. High Court, Kumasi Ex parte Fosuhene [1989 -90] 2 GLR 315 SC and page **565 of Justice Brobbey's Book on "The Law of Chieftaincy in Ghana",** Counsel submitted that the Applicant complied with the rules because the suit was initiated by an individual so a certificate of

the Judicial committee is not necessary. **Pages 565 and 566 of Justce Brobbey's book on "The Law of Chieftaincy in Ghana"**, states as follows;

"It was held in Akenten II v. Mensah [1989 - 90] 2 GLR 239 that under Act 370, s 26(7) where allegation of contempt is made in chieftaincy disputes, it is the judicial committee whose order has been breached which is the Complainant and not the person in whose favour the order was made. It was therefore the judicial committee which should certify that its order had been breached and to request the High Court to conduct inquiry and punish the respondent if the contempt is established. The certification is of paramount importance. The Republic v. Akenten II; Ex parte Yankyera [1993 – 94] 1 GLR 246, CA it was held that a certification by the judicial committee was a *sine qua non* where the complaint was that there had been a contempt of a judicial committee of the traditional council. The Court finally ruled that the High Court acted without jurisdiction when it heard and convicted the appellant for contempt without the necessary certification from the judicial committee.

On the other hand, it has been held in the Supreme Court that both the judicial committee and individual suitors can challenge interference in the administration of justice in chieftaincy disputes and therefore can initiate contempt proceedings affecting disputes in Judicial Committees.

That it was decisively held in *Republic v. High Court, Kumasi; Ex parte Fosuhene* [1989 – 90] 2 GLR 315, SC. Similarly, in In *re Effiduase Stool Affairs (No. 2); Republic v. Numapau, President of the National House of Chiefs; Ex parte Ameyaw* II (supra), the Supreme Court held that a Judicial Committee or a party to an action in the Judicial Committee can initiate contempt proceedings in the High Court. The Court held further that where the application for contempt is initiated by the committee, a certificate to that effect is required to be issued under Act 370, s 26(7)".

In the case of the **Republic v. High Court, Sekondi; Ex Parte Perkoh II [Court of Appeal, Accra [2001 – 2002] 2 Ghana Law Report 460, Date: 21 March 2002,** the facts of which are similar to the present case, the Court held as follows;

"In the above case the sole legal basis for the application was that the appellant continued to perform the functions of a chief notwithstanding the service on him of an application for interim injunction seeking to restrain him from performing any such function. In other words, the respondent's contention was that the mere filing of an application for an order of interim injunction was sufficient reason to prevent a respondent from continuing to perform as a chief. And that he commits contempt of court if he continues to exercise the functions of a chief from the moment the application was served on him.

This brings us to a more serious issue and that is whether the High Court could deal with the contempt application in flagrant disregard to the procedure prescribed by LI 798. Regulation 13 of LI 798 has these relevant provisions:

"(4) A person who does anything in relation to the exercise of the judicial functions of a traditional council which if done in relation to the District Court will constitute a contempt of that court shall be guilty of contempt of that council

(5) Where it appears to the judicial committee that any person has committed contempt of the traditional council by which that committee was appointed it shall certify that fact to the High Court and the High Court shall after inquiring into the matter take steps for the punishment of the person in question if it is satisfied that he is guilty of contempt, and shall otherwise acquit that person"

It follows from the foregoing provisions that it is only the judicial committee of a traditional council that has the right to refer a contempt matter in a case that is pending before it in the High Court; no party to the proceedings is given that right. The judicial committee must be satisfied, albeit prima facie, that there is contempt committed before it can certify that fact to the High Court. The High Court cannot hear an application directly without a reference from the traditional council in contempt matters. Thus the High Court ought to have declined jurisdiction to entertain this application…."

In the case of **Akenten II v. Mensah [1998 – 90] 2 GLR 239 @ 240** the Court held that;

"on construction of section 26 (7) of the Chieftaincy Act, 1971 (Act 370), it was the judicial committee of a house of chiefs whose judgment, order or orders had been disobeyed which was the proper complainant and not the person (as in the instant case) in whose favour the order was made. It was the judicial committee of the house of chiefs which should certify the fact that its judgment order or orders had been disobeyed to the High Court, and request the High Court which had power to punish for contempt to hold an inquiry into the matter and take steps for the punishment of the person in question if it was satisfied that the person was guilty of contempt or otherwise acquit that person. There was a difference between an application for contempt under Act 370, s. 26 (7) and the procedure for attachment for contempt when an order or orders of a court had been disobeyed. In the latter case, any interested party could move the High Court for attachment for contempt against the person or a group of persons who had disobeyed the order or orders of the court.

In the case of **Republic v. Akenten II Ex Parte Yankyera [1993 – 94] GLR 246** the Court held as follows;

"(5) The High Court derived its power to punish acts of contempt committed against judicial committees of traditional councils from regulation 13(5) of LI 798 and not Ord 59,r 21 of LN 140A .Under reg 13(5) of L.I. 798 the High Court assumed jurisdiction over complaints of contempts committed against traditional councils only where there had been certification by the judicial committee. Accordingly, certification by the judicial committee was a sine qua non where the complaint was that there had been a contempt of a judicial committee of a traditional council,

as in the instant case. Accordingly, the High Court acted without jurisdiction when it granted the respondent leave under Order 59, r 21 of LN 140A and proceeded to hear and convict the appellant for contempt".

The case of **Ex parte Fosuhene [1989 -90] 2GLR 315** held that;

"(1) the object of the discipline enforced by the court in a case of contempt was not to vindicate the dignity of the court or the person of the judge but to prevent undue interference with the administration of justice. That rationale would permit both the court and the suitors to it to challenge any interference with its administration. Section 26 (7) of the Chieftaincy Act, 1971 (Act 370) did not abrogate a suitor's right to recourse to the court to uphold and sustain the uninterrupted administration of justice. The section was only restrictive of the options available to a chieftaincy tribunal itself. That tribunal if it wished to enforce contempt against its authority, must do so in strict compliance with the mode set out by section 26 (7) of the Act, i.e. by certifying the contempt with particulars of it. Section 26 (7) was therefore applicable only to a chieftaincy tribunal and not to a suitor like the applicant exercising his common law rights. The trial judge had erred in holding otherwise".

In the light of the above authorities the Court is of a firm conviction that the Applicants properly invoked the jurisdiction of this Court regarding the application for contempt and for that matter the Court could hear the application.

ISSUE (2)

Whether or not the Respondent is guilty of contempt

Pursuant to a writ and motion on notice for interlocutory injunction the Applicants filed in the JCDTC, they further filed an application for attachment of the Respondent herein for contempt on 24th June, 2024 for demonstrating or exhibiting gross disrespect for law and order, and exhibiting conduct which tend to expose the administration of justice to public ridicule and contempt in the chieftaincy proceedings titled; Nana Saara Adjei & Others v. Nana Adusei Bonsu & Others pending before the Judicial Committee of Dormaa Traditional Council, Dormaa Ahenkro and for any further order(s) as the Judicial Committee may deem fit to make. The gravamen of the Applicants' case is that while a suit they initiated in the JCDTC is pending against the Respondents and an injunction filed on 10th January, 2024 to restrain the 12th Respondent from styling himself and performing the duties and functions as Chief of Abesim and Kyidomhene of Dormaa Traditional Area, the Respondents in total disrespect to the Court processes organized the coronation of the 12th Respondent on 2nd June, 2024.

That since the coronation of the 12th Respondent was held when the application for injunction was pending, the 12th Respondent is guilty of contempt because being aware of the existence of the injunction he went ahead to perform the act that the injunction sought to restrain him from doing per the case of Republic v. Moffat Ex Parte Allotey

[1971] 2 GLR. Counsel further referred to the case of Aryeetey v. Agbofa II and Another [1994 – 1995] and page 378 of Francisca Serwaa Boateng's book; **The Handbook on Civil Procedure and Practice in Ghana.** The Applicants' prayer is for the Respondent to be committed to prison for grossly disrespecting the orders of the Judicial Committee of the Dormaa Traditional Council. He should therefore be punished to serve as deterrent to like – minded individuals.

Counsel for Respondent submitted that the Respondent was nominated, elected, installed and enstooled as Chief of Abesim between 29th and 31st December, 2023 while the chieftaincy proceedings and the injunction were filed on 10th January, 2024. Counsel argued that the injunction sought to restrain the Respondent after he had been installed as Chief of Abesim eleven (11) days thereafter. That upon the installation of the Respondent as Chief of Abesim, he remains the substantive Chief of Abesim until his installation is set aside as being invalid.

Counsel cited **Section 61 of the Chieftaincy Act, 2008 (Act 759)** which is to the effect that a chief is not liable for contempt of a court in court proceedings because of an act done or statement made in good faith in respect of or during legitimate customary proceedings or practice which are not in a wilful violation of a specific order of a court. Counsel contends that the Respondent having established that he was a Chief when the chieftaincy petition and injunction were filed, the onus lies on the Applicants to prove contempt against the Respondent by showing that what happened on 2nd June, 2024

based on which the Respondent has been cited for contempt amounts to contempt under Section 61 of the Chieftaincy Act or that the Respondent violated an order of a Court. Counsel argued that the Respondent has not disobeyed any Court order neither has he treated any Court process with disrepute. He has also done nothing to spite and undermine the administration of justice by putting the Judicial Committee of the Dormaa Traditional Council to disrepute. The Applicant has failed to prove a charge of contempt against the Respondent and therefore the application should be dismissed.

From the affidavit evidence filed by the parties it is not disputed that the Respondent was nominated, selected and installed as Chief of Abesim and Kyidomhene of Dormaa Traditional Area. Therefore, regardless of the fact that the Applicants initiated proceedings against the Respondent in the Judicial Committee of the Dormaa Traditional Council, unless the Respondent is removed or destooled by a Court of competent jurisdiction namely the Judicial Committee of the Dormaa Traditional Council among others, he remains the Chief of Abesim and Kyidomhene of Dormaa Traditional Area. In the Court's considered view, the Respondent can continue to perform his duties as a chief while the suit at the Judicial Committee of the Dormaa traditional Council is pending. Notwithstanding the service of the writ and motion on notice for interlocutory injunction on him, he still remains the substantive Chief of Abesim until he is validly destooled. The mere filing of injunction cannot destool him or

prevent him from performing his functions as a Chief when he is the only substantive Chief of Abesim at the moment.

The Applicants' prayer is that the process by which the Respondent was installed was unlawful and they are praying the JCDTC to compel the Defendants, (the kingmakers) to ensure that the proper customary procedure for the nomination, election and installation of the Chief of Abesim and Kyidomhene of Dormaa Traditional Area is complied with. In the Court's view the JCDTC is yet to determine the suit of the Applicants to establish the proper customary procedure that it may compel the kingmakers to comply with. While that is yet to be determined the installation of the Respondent as Chief cannot be held in abeyance. He must continue to perform his chiefly duties until the JCDTC determines otherwise. Even if the JCDTC gives its decision and he is aggrieved by the decision and he files an appeal against the decision, his appeal operates as stay of execution of the decision of the JCDTC no matter how long the appeal takes. The issue is therefore not as easy as it appears to the Applicants.

I have read the case of the **Republic v. Moffat and Others Ex Parte Allotey [1971] 2 GLR 391 – 403** cited by Counsel for the Applicants which held in holding (1) that;

"(1) any conduct which tends to bring the authority and administration of the law into disrespect or to interfere with any pending litigation is contempt of court. Once the respondent

became aware of the pendency of the motion before the High Court, any conduct on their part which was likely to prejudice a fair hearing of that motion or interfere with the due administration of justice amounted to contempt of court".

I take further notice that the Respondent had notice of the writ and the application for injunction before the event complained of by the Applicants as coronation of the Respondent per exhibit "B" held on Sunday 2nd June, 2024 which the Respondent justified under Section 61 of the Chieftaincy Act as an inaugural meeting with the kingmakers, chiefs, elders, and subjects of the Abesim stool as the newly enstooled chief. Certainly the said event is not an inaugural meeting as claimed by the Respondent because the heading *"Abesim welcomes New Chief and Queen mother in grand coronation ceremony*" defeats the Respondent's claim of an inaugural meeting and the pomp and pageantry in which the Respondent and the queen mother are dressed speaks volumes.

The Court has taken notice of Section 61 of the Chieftaincy Act under which the Respondent sought solace which provides that;

"A chief is not liable to a charge of contempt of court in court proceedings because of an act done in good faith in respect of or during legitimate customary proceedings or practice which are not in willful violation of a specific order of a court".

I share the view of Section 61 of the Chieftaincy Act that the Respondent was performing a legitimate customary proceeding pursuant to his installation as Chief of

Abesim and in the Court's view, that could not constitute a violation of Court order since the JCDTC has not yet made an order. In the Court's view, the filing and service of the injunction on the Respondent could not amount to his installation having been set aside for which reason he is estopped from performing his functions as Chief of Abesim.

I also take cognizance of the case of the **Republic v. High Court, Sekondi; Ex Parte Perkoh II [Court of Appeal Accra [2001 – 2002] 2 Ghana Law Report 460, Date: 21 March 2002,** which is very instructive and in which case the Court held as follows;

"The second point raised under the first ground of appeal was that the mere filing of an application for interim injunction was not sufficient reason to debar a chief from performing the functions of the office as held by the trial court. Counsel for the respondent was of the view that if the chief was not restrained automatically upon being served with an application for interim injunction, he may "alienate stool property so that by the time the motion is finally disposed of he might have dissipated most of the stool properties." At the court below the respondent's counsel relied on the case of Republic v. Mofat; Ex Parte Allotey [1971] 2 GLR 391. It seems it is this authority that has been relied upon for the argument that once a person has been served with an application for interim injunction, he must cease performing the act for which the application has been brought else he is automatically guilty of contempt. I think it is about time we put such argument and belief to rest. That case did not in the first place purport to lay any hard and fast rule that a person served with an application for interim injunction commits contempt of court if he does that very act for which the application has been brought. Moreover, the Court was careful

in emphasizing the point that it was only conduct that was likely to bring the administration of justice into disrespect or interfere with any pending litigation that was contempt of court…

Turning to the facts of this case, it is clearly wrong to say that as soon as a chief is served with an application seeking to restrain him from performing the functions of a chief, he must cease forthwith to perform such functions. Any such decision will be a recipe for chaos and anarchy in the society where the chiefs play key roles in our traditional set up. What will happen then is that a chief's detractors only have to come up with any case, however frivolous it may be, against him. Then, they only have to apply for interim injunction against him. And automatically he ceases to perform as a chief. The chief in such a situation has not been destooled yet he cannot perform the functions of his office, even though the court has not ordered that. There must not be a vacuum in the position of a chief without going through the well – laid down rules of law and customary practice. Indeed the law makers did not even intend such vacuum to exist unless the legal machinery is fully exhausted. I am here referring to the provision contained in section 27 of the Chieftaincy Act, 1971 (Act 370) which states that;

27.An appeal to the National House of Chiefs or to a Regional House of Chiefs shall operate as a stay of execution of the judgment or order appealed against and any other order made consequentially upon it unless the appellate tribunal otherwise directs.

It is to be noted from this provision that even where a chief has been found liable on a charge to destool him. The law says that if he decides to contest it on appeal he should go on to perform as a

chief whilst the appeal is going on unless the appellate court or tribunal decides otherwise. If in a situation where a chief has been found liable to destoolment charges the law permits him to continue to perform the functions of his office, how can the mere filing of an application for interim injunction operate to restrain him from performing the functions of a chief? I think in the absence of legislation or very cogent and convincing reasons, it would be unthinkable to oust a chief, however brief the duration may be, by the mere filing of an application. It is not something worth the thought and if the application continues to be pending for one, two or more years, then the position is that the chief will not be performing, and since he still remains a chief no new chief can be appointed. The court must prevent such chaotic situation. For that matter the first ground of appeal is upheld.

The second ground of appeal is closely related to the first one. To say that by the service of the appellant of the motion meant he had been asked not to perform as a chief is, to say the least, absurd and strange. This is because by that the court is saying it is the applicant who determines when the chief must stop performing his functions, rather than a properly constituted and competent chieftaincy tribunal. The Applicants themselves were seeking the ***WFTC (Wassa Fiase Traditional Council)*** *to make an order restraining the appellant, meaning they appreciated they themselves could not do that. It is only a judicial body that can order somebody not to do an act. I think this error arose from the lower court's belief that the mere filing of the application for interim injunction was sufficient to restrain a chief from performing the functions of his office. This ground of appeal succeeds".*

For the foregoing reasons, the Court is of a considered view that a charge of contempt of Court has not been made out against the Respondent because having been installed as a Chief, the filing of proceedings before the JCDTC challenging his nomination, selection, installation among others and serving him with a motion for interlocutory injunction in the light of the Ex parte Perko II case cited supra, cannot stop him from performing his chiefly duties. Therefore, any chiefly duties the Respondent performed on 2nd June, 2024 after having notice of the writ and the motion on notice for injunction are not contemptuous. In the circumstance, the Respondent cannot be held liable for contempt. I accordingly discharge the Respondent of the charge for committal for contempt.

After hearing Counsel for Respondent and Counsel for the Applicants and upon considering **Order 74 rule 2 of the High Court (Civil Procedure) Rules, 2004 (C.I 47)** which provides that;

Assessment of costs by Court

2. (1) The amount of costs to be awarded shall be assessed by the Court.

(2) Before any assessment, the parties or their lawyers may briefly address the Court on the question of costs.

(3) Without prejudice to the powers and discretion of the Court, an award of costs shall ordinarily be designed to

(a) compensate for expenses reasonably incurred and court fees paid by the party in whose favour the award is made; and

(b) provide reasonable remuneration for the lawyer of that party in respect of work done by the lawyer

(4) In assessing the amount of costs to be awarded to any party, the Court may have regard to

(a) the amount of expenses, including travel expenses, reasonably incurred by that party or that party's lawyer or both in relation to the proceedings;

(b) the amount of court fees paid by that party or that party's lawyer in relation to the proceedings;

(c) the length and complexity of the proceedings;

(d) the conduct of the parties and their lawyers during the proceedings; and

(e) any previous order as to costs made in the proceedings.,

I hereby award cost of Thirty Thousand Ghana Cedis (Ghc 30,000.00) in favour of the Respondent against the Applicants.

(SGD)

JUSTICE JOYCE BOAHEN

HIGH COURT JUDGE

22ND MAY 2025